

Court No. - 46

Case :- WRIT - C No. - 20461 of 2020

Petitioner :- Praveen Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ram Janam Shahi

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard Sri Ram Janam Shahi, learned counsel for the petitioner and Sri Anil Kumar, learned counsel appearing on behalf of the respondents.

The present writ petition has been filed seeking following reliefs:

"(i) issue a writ, order or direction in the nature of mandamus, commanding the respondent no. 2 to pass appropriate order on the application dated 07.12.2018 of the petitioner within stipulated period as directed by this Hon'ble Court.

(ii) issue a writ, order or direction in the nature of mandamus commanding the respondents to issue a revised electricity bill of the petitioner and receive the same in easy installments.

(iii) issue a writ, order or direction in the nature of mandamus commanding the respondents not to take any coercive action against the petitioner during the pendency of his application."

Learned counsel appearing on behalf of the respondents has raised a preliminary objection that the petitioner has remedy to approach the respondent no.3 under the provisions of Clause 6.5 of the Electricity Supply Code, 2005. If the petitioner approaches the respondent no.3, he will consider the grievance of the petitioner and pass appropriate orders, in accordance with law.

Under such circumstances, the present writ petition is disposed of with the observation that in case the petitioner makes a representation along with a copy of this order before the respondent no.3 within two weeks from today, the respondent no.3 shall consider the grievance of the petitioner and pass appropriate orders, in accordance with law, within a period of four weeks therefrom.

Order Date :- 9.12.2020

Lbm/-